

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX** **X**

WAYNE DIRDEN

Index No.

Plaintiff,

COMPLAINT
ECF**-against-****Plaintiff Designates Bronx
County as the Place of Trial.**
CPLR 509

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER RICHARD LESLIE,
SHIELD NO. 16663, IN HIS INDIVIDUAL AND OFFICIAL
CAPACITY, POLICE OFFICER JOHN DOE NO. 1, IN HIS
INDIVIDUAL AND OFFICIAL CAPACITY.

Defendants.

X

Plaintiff by his attorney, Welton K. Wisham, of The Law office of Welton K. Wisham,
alleges under penalty of perjury the following upon information and belief against Defendants,
The City of New York, New York City Police Department, Police Officer Richard Leslie, and
Police Officer John Doe No. 1

PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff, Wayne Dirden seeks relief for Defendants
violation of his rights secured by the Civil Rights Act of 1871, and under the Fourth, and
Fourteenth Amendments to the Constitution of the United States.

2. This action also arises under 42 U.S. C Section 1983 and the Due Process Clause of the
Fourteenth Amendments to the Constitution of the United States alleging unconstitutional
conditions of confinement.

3. Plaintiff brings this action against Defendants City of New York, the New York City
Police Department and Defendants police officers Leslie and John Doe No. 1, for the false arrest,

false imprisonment, malicious prosecution, negligence and the intentional and negligent infliction of emotional stress Mr. Dirden was cause to suffer due the Defendants' deliberate indifference to the Plaintiff's constitutional rights to be free from and unreasonable search and seizure without probable cause.

4. That the arrest of Mr. Dirden was extreme and outrageous committed by the Defendant police officers which led to the violations of the Plaintiff's constitutional rights during his incarceration as a pre-trial detainee in the New York City Department of Correction facility at the Bronx holding facility whereby Plaintiff was not allowed to eat for ten hours and was denied his prescribed medication during his nineteen (19) hours of unlawful incarceration.

5. Mr. Dirden seeks compensatory, and punitive damages, and an award of costs, and attorney fees, and such other and further relief as this Court deems equitable and just stemming from his unlawful arrest.

STATEMENT OF FACTS

6. That on September 7, 2017, at approximately 6:30 pm, Mr. Dirden was inside his apartment when two New York City Police officers knocked on the door to his apartment stating that that they were there to speak with the Plaintiff regarding a complaint filed against him by his daughter.

7. Mr. Dirden voluntarily opened the door and allowed the Defendant officers to enter his home to discuss with the officers the problems he and his twenty five (25) year old daughter , Chelsea Dirden were experiencing.

8. The Defendant police officers, Leslie and John Doe No. 1, entered Plaintiff's residence and informed Mr. Dirden that the officers had received a complaint filed against him by his

daughter and that they wanted to speak with the Plaintiff regarding the allegations contained within the complaint.

9. Mr. Dirden informed the officers that his daughter was extremely uncooperative while she was living with the Plaintiff at the Plaintiff's residence at 1551 Unionport Ave, Bronx, New York.

10. Plaintiff further stated to Officer Leslie and John Doe No. 1 that his daughter had threatened Plaintiff's life and had broken Mr. Dirden's personal possession while she resided with the Plaintiff during 2017.

11. That Mr. Dirden also informed the Defendant officers that his daughter had spit on him because she no longer wanted Mr. Dirden to be involved in her life.

12. That Plaintiff informed the officers that he had to seek an order of protection against his own daughter due to her continued disrespect and violence showed by her towards Mr. Dirden.

13. The officers asked the Plaintiff to produce the order of protection ordering his daughter to stay away from the Plaintiff and his residence.

14. Plaintiff produced the order of protection which was issued by the Hon Justice Rosenbleuth on July 31, 2017, in the Criminal Court, County of Bronx, New York ordering Defendant Chelsea Dirden to stay away from Wayne Dirden and from home, business, school and place of employment of her father, Wayne Dirden.

15. The order of protection also ordered Chelsea Dirden to refrain from assault, stalking, harassment, aggravated harassment, menacing, reckless endangerment, strangulation, criminal obstruction of breathing or circulation, disorderly conduct, etc.

16. That the allegations by Chelsea Dirden against the Plaintiff were in retaliation for the order of protection filed against her in Criminal Court.

17. That the order of protection restricted Chelsea Dirden's entrance into her father's residence at 1551 Unionport Ave, Apt 9G during the hours of 10;a.m to 2 p.m. to be accompanied with law enforcement personal, the New York City Police Department for the purpose of " removing her personal belonging only."

18. On or about August 2, 2017, Chelsea Dirden entered Plaintiff's home with two New York City police officers to retrieve her personal belongings as authorized by the Criminal Court's July 31, 2017, order of protection.

19. On or about August 11, 2017, Chelsea Dirden returned to Plaintiff's residence without law enforcement officers attempting to enter Mr. Dirden's residence.

20. Plaintiff refused to allow his daughter to enter his residence without law enforcement officers as required by the Court.

21. Mr. Dirden informed the officers of the events described herein during the brief conversation between him and the Defendant officers.

22. Chelsea Dirden was arrested on August 11, 2017, for attempting to enter Plaintiff's apartment without law enforcement officers in direct violation of the order of protection.

23. That on or about August 25, 2017. Chelsea Dirden returned to Plaintiff's residence with members of the New York City Police Department to retrieve her personal belongings.

24. That Plaintiff informed the Defendant officers inside his home on September 7, 2017, of his daughter's misbehavior, violence, and disregard of the Court issued order of protection.

25. That Mr. Dirden recognized one of the officers inside his home as an officer that had been in his home during the month of August, 2017 to assist his daughter in removing her belongs and who was aware of the fact that there existed an order of protection against Chelsea Dirden.

26. That officer Leslie informed Mr. Dirden that he was under arrest for assault on his daughter.

27. That Plaintiff protested his arrest which lacked a reasonable basis to believe that he had committed a crime.

28. That Mr. Dirden was placed in handcuffs inside his apartment and brought outside in front of his neighbors who saw him handcuffed.

29. That prior to being forced to leave his apartment Mr. Dirden told the officers that he had to take his prescribed medication before leaving his residence.

30. Defendant officer Leslie refused to allow the Plaintiff to take his medication and removed Plaintiff from his home without a warrant for arrest.

31. Mr. Dirden was arrested and charged with assault with intent to physically injure his daughter, Chelsea Dirden.

32. That Plaintiff was taken to the Bronx Criminal Court at 215 Grand Concourse Ave, Bronx, New York where he was photographed and fingerprinted and held for approximately nineteen (19) hours.

33. That during Plaintiff's incarceration he was not fed for nine hours.

34. That Plaintiff was subjected to serious injury due to the Defendant officer's deliberate indifference to Mr. Dirden's medical needs.

35. Mr. Dirden was placed in a cell that wreaked the smell of urine and feces with a concrete floor crawling with bugs.

36. That after a period of approximately nineteen (19) hours, Defendant Leslie informed Mr. Dirden that the district attorney's office had dropped the charges against him.

37. That Plaintiff was released from custody through the back door of the jail on September 8, 2017.

38. That Plaintiff was unlawfully arrested searched, incarcerated and was caused to suffer severe emotional distress due to the unlawful, arbitrary and capricious actions of the Defendant officers.

JURISDICTION AND VENUE

39. This Court has personal jurisdiction over the Defendants because the defendants transacted business within the State of New York within the meaning of CPLR Section 302(a) (1) and Defendants committed a tortuous act inside the State of New York, County of the Bronx, and causing injury to the Plaintiff.

40. This Court also has concurrent jurisdiction over Plaintiff's civil rights causes of action pursuant to 42. U.S.Code Section 1983.

PARTIES

41. Plaintiff is a citizen of the United States and at all times relevant herein resided in the City of the Bronx, State of New York.

42. That at all times relevant herein, Defendants Police Officers Leslie and John Doe No.1, were duly appointed as police officers and were acting within the scope of their employment as employees of the New York City Police Department.

43. That the Defendant police officers named herein, upon information and belief, are current members of the New York City Police Department assigned to the 43rd police precinct located in the City of Bronx, New York.

44. That the individual police officers involved in the incident underlying this lawsuit were at all times mentioned in this complaint, agents, servants, and employees, acting within the scope of their employment by Defendant City of New York, and were duly appointed police officers in the New York City Police Department acting within their individual, and official capacity, and

under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

45. That the Defendant, City of New York, is a municipal corporation within the State of New York.

46. That pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

47. That at all times relevant hereto, the City of New York employed the defendant Police Officers involved in this incident.

48. That at all times relevant hereto, Defendant City of New York, acting through the New York City Police Department (or "NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

49. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers, and of all NYPD officers involved in the incident complained of herein.

50. That at all times relevant hereto, Defendant City of New York was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

51. That at all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs, and usages of the City, and State of New York.

NOTICE OF CLAIM

52. Plaintiff, in furtherance of his New York State causes of action, filed timely notice of claim against the named Defendants and the City of New York in compliance with General Municipal Law Section 50 H.

53. More than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

54. This action has been commenced within one year and ninety days from the date of Plaintiff's injuries and arrest.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS UNDER 42 U.S. CODE SECTION 1983, FOR VIOLATING PLAINTIFF'S CONSTITUTIONAL RIGHTS UNDER THE FOURTH AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES AND UNDER THE CONSTITUTION OF THE STATE OF NEW YORK
ARTICLE 1 SECTION 12.**

55. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered"1 through "54' with the same force and effect as though more fully set forth at length herein.

56. That at all times herein mentioned the Plaintiff, was unlawfully searched, seized, detained, restrained and held in custody on September 7, 2017.

57. That Defendants violated Mr. Dirden's Fourth Amendment right to be secure in his persons, houses, papers and effects, against unreasonable searches and seizure, and that no Warrant shall issue without probable cause supported by Oath or affirmation and particularly describing the place to be searched and the persons or things to be seized.

58. That plaintiffs suffered emotional pain, humiliation, and degradation, due to the Defendant's police officers illegal search, seizure and arrest of Plaintiff without a valid arrest warrant and without probable cause or legal justification.

59. That the Defendants, their agents, servants and, or employees, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably arrested Mr. Dirden without a warrant ,and without probable cause.

60. That the defendant police officers named herein, unlawfully arrested and imprisoned Plaintiff without probable cause to believe that Mr. Dirden had engaged in any criminal activity at the time of the Defendants' entry into Plaintiff's residence.

61. Mr. Dirden suffered emotional distress, trauma, embarrassment, ridicule, scorn, and depravation of his civil rights caused by the Defendant's police officers.

62. That the unlawful arrest of the Plaintiff by the Defendant police officers constituted a malicious ,wanton, and reckless act and degradation of the plaintiff's liberty and due process of law, without legal justification or cause.

63. Defendants' unlawful actions were done willfully and knowingly with the specific intent to deprive Plaintiff of his constitutional rights.

64. As consequence thereof, Plaintiff has been greatly injured.

**AS AND FOR PLAINTIFF'S SECOND CAUSE OF ACTION AGAINST THE CITY
OF NEW YORK FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. SECTION
1983.**

65. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered"1 through "64" with the same force and effect as though more fully set forth at length herein.

66. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the Plaintiff's constitutional rights which caused the violation of such rights.

67. The Defendants unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

68. That the acts, omissions, and practices alleged herein constitute a pattern or practice of conduct that violates the rights privileges and immunities of the Plaintiff which are secured or protected by the Constitution of the United States.

69. That the New York City Police Department's conduct amounted to a policy of deliberate indifference to Plaintiff's constitutional rights to be free from an unlawful search and seizure inside Plaintiff's residence without a warrant.

70. That the law recognizes several ways in which a municipal policy can be set by a municipality to cause it to be liable under section 1983. 1) the explicit setting of a policy by the government that violates the Constitution, 2) the action of a policy makers within the

government, 3) the adoption through a knowing failure to act by a policy maker of actions by his subordinates that are so consistent that they have become custom or 4) the failure of the government to respond to an obvious need for better training of its employees in such a manner as to show “deliberate indifference “to the risk that not addressing the need will result in constitutional violations.

71. That the Defendants knew or should have known of the deficiencies alleged herein and that the New York City Police Department’s failure to supervise and train Defendants Leslie and John Doe No. 1, amounted to deliberate indifference to the Plaintiff’s Constitutional rights protected under the Fourth, and Fourteenth Amendments.

72. The Defendants had a duty to conduct a reasonable investigation of the fact that Chelsea Dirden had been ordered to stay away from her father’s residence.

73. That officer Leslie and John Doe No. 1 was aware of or should have been aware that Chelsea Dirden had engaged in violent conduct against Plaintiff which prevented her from continuing to reside with the Plaintiff at 1551 Unionport Ave. Apt 9G.

74. That the Defendants’ deliberate indifference caused the violations of the Constitutional rights alleged herein.

75. Defendants’ practice of failing to train and supervise the individual Defendant officers in ascertaining the terms and conditions set forth throughout a Court ordered order of protection of the foreseeable retaliation thereof constitutes a practice that, upon information and belief, is widespread and resulted in an impediment of Plaintiff’s constitutional right to be free and secure in his residence from an unlawful seizure.

76. The acts and omissions set forth herein were carried out by the aforementioned individual Defendants, and subordinates in their official capacity as police officers of the New York City Police Department pursuant to the customs, policies and practices, within the New York City Police Department under the supervision of Commissioner James P. O'Neil under color of state law.

76. That the failure to supervise train and or discipline the Defendant officers resulted in a custom, policy or practice that served as the moving force behind the constitutional violations suffered by Plaintiff Dirden.

77. As a direct and proximate result of the foregoing practices and customs, Plaintiff was seized and subsequently arrested inside his residence and taken to the Bronx Criminal Court where he was made to remain incarcerated for nineteen (19) hours.

78. That the policy makers within the City of New York and the New York City Police Department including commissioner James O'Neil, knew or should have known that the policies in effect during the time of the Plaintiff's unlawful search and seizure were being ignored, and that the Defendants were deliberately indifferent to Plaintiff's constitutional rights.

79. The policy makers within the New York City Police Department had constructive knowledge of the foreseeable injuries to the plaintiff as set forth above and failed to do anything about it.

80. Plaintiff's right to be free from arbitrary government actions including the right to be free from unreasonable search and seizure which caused Plaintiff's injuries without legal justification, was clearly established on September 7, 2017.

81. That the constitutional abuses, and violations by the City of New York through the actions of the Defendant officers and employees, were directly and proximately caused by policies, practices and customs developed, implemented, enforced, encouraged, and sanctioned by the Defendant, City of New York.

82. Defendants' unlawful actions were done willfully, knowingly and with the specific intent to deprive Plaintiff of his constitutional rights.

83. As consequence thereof, Plaintiff has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST THE CITY OF NEW
YORK UNDER 42 U.S.C. SECTION 1983, FOR FAILUER TO TRAIN,
SUPERVISE OR DISCIPLINE DEFENDANTS POLICE OFFICER LESLIE AND
POLICE OFFICER JOHN DOE NO. 1.**

84. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through 82", with the same force and effect as though more fully set forth at length herein.

85. That at all times herein mentioned the individual Defendants of the New York City Police Department involved in the incident complained of herein, were negligently hired, trained, supervised, disciplined, and retained by the Defendant, City of New York.

86. That the acts complained of herein resulted from the Defendants City of New York, and the New York City Police Department, through their agents, servants and employees, breaching its duty to properly assign, train, supervise, discipline and retained its employees within the Department of Correction.

87. That the City of New York failed to train, supervise, or discipline the municipal Defendants named herein who unlawfully held and detained and arrested Plaintiff inside his residential apartment without probable cause or legal justification.

88. That the defendant City of New York's failure to properly assign, train, supervise or discipline its Police Department employees including the named Defendants involved in this incident herein, constituted a practice of acquiescence, and a tolerance of ongoing unconstitutional detentions, and seizures, which allowed the defendants to believe that they could violate plaintiffs' constitutional rights with impunity.

89. By reason of the foregoing, the individual defendants individually, and through defendant's agents, servants and employees, failed, and refused to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances, thus resulting in significant emotional injuries to the plaintiff including his loss of liberty and permanent emotional distress.

90. That the City of New York should be held liable for the underlying constitutional violations committed by non- policy makers employees due to the fact that the City's policy and customs of inaction is objectively deliberately indifferent to the likelihood that a constitutional violation would occur.

91. That there was an obvious need for additional training and supervision which the City was aware of and failed to provide.

92. That by the conduct of the Defendants, as described herein, the City of New York is liable to the Plaintiff under 42 U.S.C. Section 1983 for the violations, under color of state law for

violating Plaintiff's right to be free from deprivation of liberty without due process of law under the Fourth and Fourteenth Amendment to the United States Constitution.

93. That the failure of the City of New York, and the New York City Police Department and Commissioner James O'Neil to adequately train, supervise or discipline or in any other way control the behavior of the municipal defendants identified herein in the exercise of their official functions, and their failure to enforce the laws of the State of New York, and the regulations of the City of New York Police Department is evidence of the reckless lack of cautious disregard for the rights of the Plaintiff, Wayne Dirden.

94. That such conduct, or lack thereof exhibited a lack of the degree of due care which a reasonable and prudent individual would have shown in executing the duties of the Commissioner of the New York City Police Department.

95. That the need for more or better supervision, or training to protect against the constitutional violation was patently obvious which the City of New York failed to provide.

96. As consequence thereof, Plaintiff has been greatly injured.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANT POLICE
OFFICERS AND JOHN DOE NO.1, UNDER 42 U.S.C SECTION 1983 AND
PURSUANT TO NEW YORK STATE LAW FOR FALSE ARREST AND FALSE
IMPRISONMENT**

97. That Plaintiff repeats, reiterates, and realleges each and every allegation contained in Paragraphs "1 through "96", with the same force and effect as though more fully set forth at length herein.

98. That by reason of the foregoing, the Plaintiff was intentionally confined without privilege or probable cause to believe that Plaintiff was engaged in unlawful activity.

99. That Plaintiff was aware of and did not consent to his confinement.

100. That Mr. Dirden was thereby falsely arrested and detained and imprisoned by Defendant police officers Leslie and John Doe No. 1

101. As a direct and proximate result of the above described unlawful and malicious acts of the defendant police officers, all committed under color of their authority as police officers while acting in that capacity, Plaintiff sustained injuries and suffered emotional damages all of which resulted in the violation of plaintiff's rights under the laws and Constitution of the United States, in particular the Fourth and Fourteenth Amendments thereof.

102. The common law tort of false arrest is a species of false imprisonment, and action derived from the ancient common-law action of trespass [that] protects the personal interest of freedom from restraint of movement.” Singer v. Fulton County Sheriff, 63 F. 3d 110, (2d Cir. 1995) (quoting Broughton v. State of New York, 37 N.Y. 2d at 93, 335 N.E 2d at 314.

103. Under New York Law, there are four elements of a false imprisonment claim: (1) the defendant intended to confine the plaintiff, (2), the plaintiff was conscious of the confinement, (3) the plaintiff did not consent to the confinement, and (4) the confinement was not otherwise privileged.” Id. The Singer Court also cited Hygh v. Jacobs, 961 F 2d 359, at 366 (“the elements of a claim of false arrest under section 1983 are substantially the same as the elements of a false arrest claim under New York Law.”

104. Plaintiff's claim under section 1983 for false arrest recognizes the same state elements, but also rests on the right of the individual to be free from unreasonable seizures, including arrest without probable cause.

105. Mr. Dirden was intentionally and unlawfully confined by the Defendants, police officers in that Plaintiff was sufficiently and significantly deprived of his liberty, and was not free to move, his liberty was severely restricted by the defendant officer.

106. The officers lacked knowledge or reasonable trustworthy information sufficient to warrant a person of reasonable caution in the belief that Plaintiff had been engaged in an unlawful offense thus justifying the Plaintiff's detention.

107. As a direct and proximate cause of Defendants unlawful actions, Plaintiff was caused to have suffered harm and severe emotional stress, and loss of liberty.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE CITY OF NEW YORK AND DEFENDANTS LESLIE, AND JOHN
DOE NO. 1, UNDER 42 U.S.C SECTION 1983 FOR VIOLATING PLAINTIFF'S
RIGHTS UNDER THE DUE PROCESS OF LAW CLAUSE OF THE
FOURTEENTH AMENDMENT TO THE CONSTITUTION OF THE UNITED
STATES**

108. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs "1 through 107", with the same force and effect as though more fully set forth at length here herein.

109. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of plaintiffs' right to free from the deprivation of liberty without due process of law.

110. As direct and proximate result of the defendant officers' conduct, Plaintiffs were greatly humiliated, embarrassed, and injured, and have been caused to suffer great pain and suffering and mental anguish.

**AND FOR AN SIXTH CAUSE OF ACTION AGAINST DEFENDANT POLICE
OFFICERS LESLIE AND JOHN DOE No. 1, FOR INTENTIONAL INFLICTION
OF EMOTIONAL STRESS.**

111. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered " 1" through "110" with the same force and effect as though more fully set forth at length herein.

112. That the Defendant police officers, agents, servants and/or employees, engaged in actions intended to inflict emotional trauma on the Plaintiff.

113. That by reason of the foregoing, the Plaintiff has suffered physical pain and suffering, mental and emotional distress due to Defendants unlawful and reckless actions as more fully described herein.

114. That Dirden's claim for the Intentional Infliction of Emotional Distress was caused by the Defendant New York City Police officers who intentionally and without reason, privilege or probable cause entered Plaintiff's home and conducted an illegal search and seizure of the Plaintiff without probable cause.

115. New York State Law for the Claim of Intentional Infliction of Emotional Distress is well established and recognized throughout the State of New York. The tort has four (4) elements; 1) extreme and outrageous conduct, 2), intent to cause severe emotional distress, 3), a causal connection between the conduct and the injury, and 4) severe emotional distress.

116. New York Court have recognized this claim when the conduct complained of “ is so outrageous and character and so extreme in degree as to go beyond all possible bounds of decency, and to be regarded as atrocious and utterly intolerable in a civilized society.” **Murphy v. American Home Products Corp.**, 58 N.Y. 2D 293, 303,461 N.Y.S.2d 232 ,236, 448 N.E. 2d 86, 90 (1983).

117. The acts committed against the Plaintiff by the defendant police officers were clearly intended to cause the Plaintiff extreme physical damage to his mind and body by willfully and deliberately entering Plaintiff’s home and failing to allow Mr. Dirden to obtain his prescribed medication.

118. That the officers intentionally placed Plaintiff in apprehension of fear and imminent harm and offensive contact by defendants’ unlawful and unprivileged arrest without legal justification which resulted in serious emotional injuries to the Plaintiff, for which Plaintiff now seeks compensation.

119. New York State Law for the Claim of Intentional Infliction of Emotional Distress is well established and recognized throughout the State of New York. The tort has four (4) elements; 1) extreme and outrageous conduct, 2), intent to cause severe emotional distress, 3), a causal connection between the conduct and the injury, and 4) severe emotional distress. **Howell v. New York Post Co.**, 81 N.Y. 2d 115, 121, 596 N.Y.2d 350, 353, 612 N.E. 2d 699, 702 (1993).

120. For the reasons set forth herein, Plaintiff has been injured.

AS AND FOR A SEVENTH CAUSE OF ACTION AGAINST THE CITY OF NEW YORK FOR RESPONDEAT SUPERIOR.

121. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “120” with the same force and effect as though more fully set forth at length herein.

122. That at all relevant times the Defendants acted under pretense of color of state law and are acts were without authority of law in abuse of its powers.

123. That the conduct of the Defendants occurred while they were on duty during the course and scope of their duties and functions as New York City Police Department employees as agents and employees of the Defendant City of New York.

124. The City of New York is therefore liable to Plaintiff under the common law of Respondeat Superior.

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount of \$ 500,000 for the violations of Plaintiff's constitutional rights.

B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants for the willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

C. An award to plaintiff of the costs and disbursements herein.

D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated; May 2, 2018.
New York, New York

/s/ _____
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